IN THE COURT OF MS. AMARDEEP KAUR, CIVIL JUDGE-I, PATIALA HOUSE COURTS, NEW DELHI

CNR No. DLND03-002137-2019
CS No. 878/2019

In the matter of :-

M/s True Link Finance Ltd.
D-44, Mohan Singh Market,
Sector-6, R. K. Puram,
New Delhi-110022. ….. Plaintiff

Versus

Ms. Nitu
W/o Sh. Raj Kumar
R/o H. No. 221, 3rd Floor,
Sector 21, Dwarka,
New Delhi-110077.

Alternate Address:-
Ms. Nitu
W/o Sh. Raj Kumar
R/o H. No. 104, Arjun Nagar,
Safdarjung Enclave,
New Delhi-110029.

Alternate Address:-
Ms. Nitu
W/o Sh. Raj Kumar
E. No. 219/752,
Rank-House Fire Party
District Civil Defence Office (New Delhi)
10/11, Jam Nagar House,
New Delhi-110001. ..... Defendant

Date of Institution : 02.07.2019
Date of Reserving Judgment: 19.10.2022
Date of Judgment : 19.10.2022

SUIT FOR RECOVERY OF RS. 7,151/- ALONG WITH INTEREST

EXPARTE JUDGMENT

1. The present suit is filed by the plaintiff seeking recovery of Rs. 7,151/- against the defendant. The brief facts as alleged by the plaintiff are that the plaintiff is a Limited NBF company duly incorporated under Companies Act 1956, having its registered office at D-44, Mohan Singh Market, Sector-6, R.K.Puram, New Delhi-110022, and engaged in doing business of Hire Purchase and Finance. The present suit has been filed by Sh. Shashi Bhagria, who is one of the Director of plaintiff company and is authorized to sign, verify the pleadings and to institute the present case, as well as lead evidence.

2. On 13.06.2020, defendant approached the plaintiff to obtain a finance/loan of Rs. 8300/- for purchase of one Gionee Mobile Phone with the assurance to repay the borrowed sum with interest in 06 loan installments of Rs. 1,635/- each w.e.f. 20.10.2017. It was agreed that in case of any delayed installment payment, overdue interest @ 2.5% shall be payable by defendant. The defendant also executed promissory note dated 23.09.2017 as collateral security for amount of Rs. 9,810/- i.e., the amount payable under the agreement after adding interest. However, after making certain payments, defendant failed to maintain the required financial discipline and defaulted on making due payments. Therefore, plaintiff sent a demand notice dated 11.12.2018 to the defendant. However, despite service of legal notice, defendant failed to pay the outstanding dues. Hence, the present suit.

3. Summons under Order 37 Form 4 Appendix B CPC issued to defendant. The same was served upon defendant on 08.01.2021 through whatsapp. Now though the suit was originally instituted as a summary suit under order 37 CPC, the AR for the plaintiff prayed for converting the suit to an ordinary one. The same was allowed on 08.03.2022. Despite service, defendant failed to appear before the Court. Hence, he was proceeded ex parte vide order dated 08.03.2022.

4. Thereafter, matter was fixed for ex-parte evidence. Earlier AR of the plaintiff Sh. Sudhir Kumar examined himself as PW-1, filed his evidence by way of affidavit Ex. PW-1/A and relied upon the documents as under:

(i) Copy of Board Resolution dated 01.10.2021 Ex. PW1/1A.

(ii) Copy of Incorporation Certificate Ex. PW1/2.

(iii) Copy of RBI registration Certificate Ex. PW1/3.

(iv) Copy of Board Resolution dated 20.12.2017 Ex. PW1/4.

(v) Copy of Form No. 32 Mark A.

(vi)Loan-cum-Hypothecation Proposal form dated 23.09.2017 Ex. PW1/5.

(vii)Loan-cum-Hypothecation Agreement dated 23.09.2017 Ex. PW1/6.

(viii) Promissory Note dated 23.09.2017 Ex. PW1/7.

(ix) Copy of office ID Card and aadhar of defendant Mark B and C.

(x) Legal demand notice dated 11.12.2018 Ex. PW1/8.

(xi) Original postal receipts Ex. PW1/9 (colly).

(xii) Certified copies of statements of account of defendant Ex. PW1/11.

5. Thereafter, an application under Order 7 rule 14 CPC for taking on record additional documents along with application under Order 18 rule 17 CPC for leading additional evidence was moved on behalf of the plaintiff. The same was allowed. AR of the plaintiff Sh. R P Mishra who too was authorized vide board minutes Ex PW1/4 dated 20.12.2017 examined himself as PW-2, filed his evidence by way of affidavit Ex. PW-2/1B and tendered in evidence additional documents i.e. copy of invoice no. SSS/D-35-267 dated 23.09.2017 of M/s Shambhu Shree Services Pvt Ltd in the name of Defendant mark D and copy of account statement for the period 01.04.2017 to 08.10.2017 in which loan extended has been credited Mark E.

6. No other witness was sought to be summoned or examined by the plaintiff. Accordingly, ex-parte evidence was closed on 19.10.2022.

7. In the present case, plaintiff has filed the present suit for recovery of Rs. 7,151/- against the defendant along with interest @ 2.5% per month. The present suit is well within the stipulated time of limitation. Further, since the contract was executed between the parties at the office of the plaintiff which is at R K Puram, this Court has jurisdiction to decide the present case.

8. AR of the plaintiff has tendered in his evidence as PW-1, documents i.e. Board Resolution dated 20.10.2021, Loan-cum-Hypothecation Proposal form dated 23.09.2017, Loan-cum-Hypothecation Agreement dated 23.09.2017, Promissory Note dated 23.09.2017, invoice and statements of account of defendant, clearly establishing the commercial relationship between the plaintiff and the defendants. Further, the statement of account also reveals pending liability of Rs. 7,151/-. Neither the witness was cross examined nor any other evidence was led on behalf of the defendant who was proceeded ex-parte due to non-appearance. Hence, this court has no reason to disbelieve the assertions of the plaintiff, which leads to a necessary inference that defendant has failed to make the payment due to the plaintiff along with the interests that accrued thereon.

9. Keeping in view the unrebutted testimony of PW1 and PW-2 and documents relied upon by them, it can be said that the plaintiff has duly established its case that defendant has unlawfully withheld the amount due to the plaintiff which the plaintiff in entitled to recover.

10. In view of the above discussion, therefore, the suit of the plaintiff is decreed. The plaintiff is awarded decree for recovery of Rs. 7,151/- along with cost of suit.

11. In regards to the interest component, though the plaintiff has prayed for interest @ 2.5 % per month, considering the facts and circumstances of the present case, I deem it fit that the plaintiff be awarded interest @ 6% p.a.

on the aforesaid amount from the date of filing of the suit till the date of realization of the amount decreed.

12. Decree sheet be prepared accordingly. File be consigned to Record Room after due compliance.

AMARDEEP KAUR

Digitally signed by AMARDEEP KAUR
Date: 2022.10.19 15:14:23 +0530

Announced in the open Court
On 19.10.2022

(AMARDEEP KAUR)
Civil Judge-I, New Delhi District
New Delhi